

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 20, 2018

Honorable David Moranda
Judge of the Superior Court
County of Merced
627 West 21st Street
Merced, CA 95340

Re: Rivera, Miguel Angel
CDC No.: AY1834
Case No.: CRM025095A
Date of Sentence: 08/27/2015

Dear Honorable David Moranda:

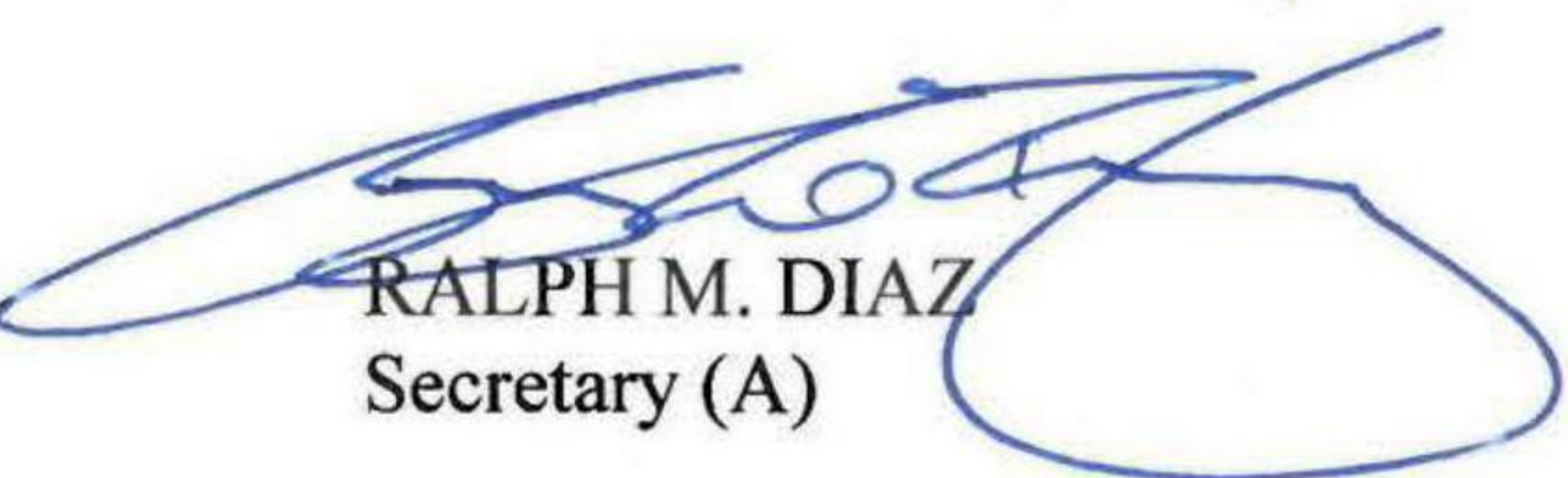
The purpose of this letter is to provide the court with authority to resentence Miguel Angel Rivera pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rivera was sentenced in 2015, and was convicted of section 245, subdivision (a)(1), Assault: Deadly Weapon Other Than Firearm. The trial court sentenced inmate Rivera on 08/27/2015. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rivera's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rivera's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, consisting of a stylized, cursive script that flows from left to right, ending in a large, circular flourish.

RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Donald J. Proietti, Merced County Presiding Judge
Merced District Attorney
Public Defender

FELONY ABSTRACT OF JUDGMENT—DETERMINATE

NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED

FILED

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF:
Merced

PEOPLE OF THE STATE OF CALIFORNIA vs.

DOB: 04-21-1985

DEFENDANT:

Miguel Angel Rivera

AKA:

CII NO.: A22912831

BOOKING NO.: 2012-00009057

☐ NOT PRESENT

FELONY ABSTRACT OF JUDGMENT

☒ PRISON COMMITMENT☐ COUNTY JAIL COMMITMENT☐ AMENDED
ABSTRACT

DATE OF HEARING

08-27-2015

DEPT. NO.

03

JUDGE

David Moranda

CLERK

Rosie Heredia

REPORTER

Darlinda Compean

PROBATION NO. OR PROBATION OFFICER

Kua Mua

☐ IMMEDIATE SENTENCING

COUNSEL FOR PEOPLE

Travis Colby, DDA

COUNSEL FOR DEFENDANT

Jeffrey A. Tenenbaum, CPD

☒ APPOINTEDCLERK OF THE SUPERIOR COURT
BY *Rosie Heredia*
DEPUTY

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

(number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DAY/YR.)	CONVICTED BY			TERM (L, M, Y)	CONCURRENT	CONSECUTIVE (2 VIOLENT)	CONSECUTIVE (2 NON-VIOLENT)	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO ITEM 5)	184 DAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COUNT	PLEA								YRS.	MON.
2	PC	245(a)(1)	Assault: Deadly Weapon Other Than Firearm	2012	05 / 15 / 15	X			U		X					08	00
					/ /												
					/ /												
					/ /												
					/ /												
					/ /												

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
1	PC12022(b)(1)	1					01 00
2	PC12022.7(a)	3	PC186.22(b)(1)	10			13 00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
PC667(a)(1)	5	PC667(a)(1)	5			10 00

4. Defendant sentenced ☒ to prison commitment per PC 1170(a), 1170(h)(3), or 1170.1(a) ☐ to county jail per PC 1170(h)(1) or (2)☒ per PC 667(b)-(l) or PC 1170.12 (strike prior)☐ per PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. Defendant ordered to report to local parole office upon release.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☒ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 32 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT:

Miguel Angel Rivera

CRM025095A

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.Case B: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.Case C: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.Case D: \$_____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
\$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase B: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund☐ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase B: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase C: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase D: \$_____ per PC 1202.5 \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$_____ per PC 1465.3.

e. Criminal Conviction Assessment: \$_____ per GC 70373.

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify):11. REGISTRATION REQUIREMENT: ☐ per (specify code section):12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: _____ Suspended: _____ Served forthwith: _____

13. Other orders (specify):

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.
Defendant's race/national origin: Hispanic

15. EXECUTION OF SENTENCING IMPOSED

- a. ☒ at initial sentencing hearing A
- b. ☐ at resentencing per decision on appeal
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment (PC 1170(d).)
- e. ☐ other (specify):

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1,036	1,036	0
B			
C			
D			
Date Sentence Pronounced		Time Served in State Institution	
08 27 2015		DMH	CDC CRC
		[] [] []	[] [] []

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

[Signature]

DATE

September 2, 2015

ABSTRACT OF JUDGMENT—PRISON COMMITMENT—INDETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-292/ATTACHED)

CR-292

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Merced			1834		2015 SEP -2 PM 4:46 CLERK OF THE SUPERIOR COURT BY <i>[Signature]</i> DEPUTY
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Miguel Angel Rivera AKA: CII NO.: A22912831 BOOKING NO.: 2012-00009057		DOB: 04-21-1985 ☐ NOT PRESENT ☐ AMENDED ABSTRACT	CRM025095A	-A -B -C -D	
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT					
DATE OF HEARING 08-27-2015	DEPT. NO. 03	JUDGE David Morand			
CLERK Rosie Heredia	REPORTER Darlinda Compean	PROBATION NO. OR PROBATION OFFICER Kua Mua		☐ IMMEDIATE SENTENCING ☒ APPTD.	
COUNSEL FOR PEOPLE Travis Colbly, DDA		COUNSEL FOR DEFENDANT Jeffrey A. Tenenbaum, CPD			

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment

_____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			CONCURRENT	CONSECUTIVE	854 STAY
						JURY	COURT	PLEA			
1	PC	187(a)	Killing of Human Being w/Malice Aforethought	2012	05 / 15 / 15	X					

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

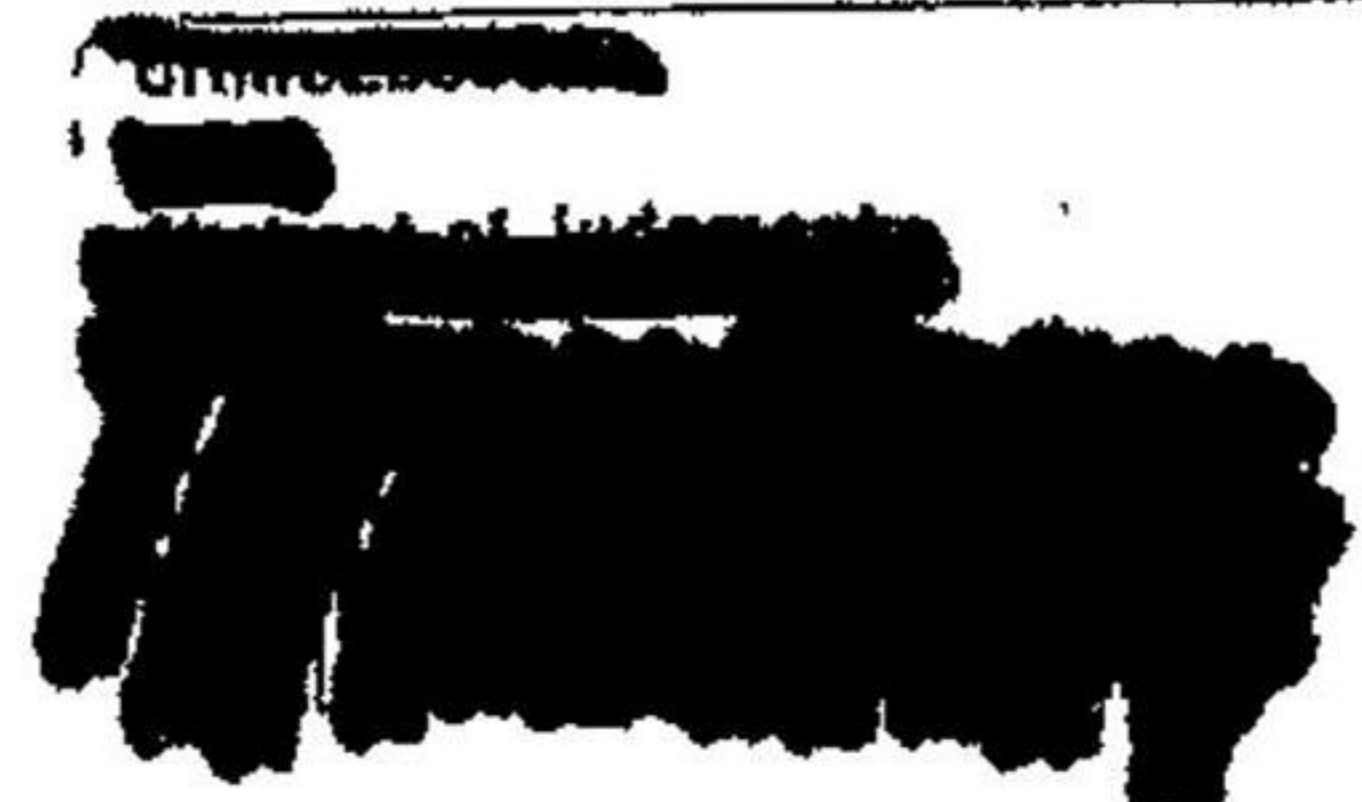
COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

Defendant was sentenced to State Prison for an INDETERMINATE TERM as follows:

4. ☒ LIFE WITHOUT THE POSSIBILITY OF PAROLE on counts 1
5. ☐ LIFE WITH THE POSSIBILITY OF PAROLE on counts _____
6. a. ☐ 15 years to Life on counts _____ c. ☐ _____ years to Life on counts _____
- b. ☐ 25 years to Life on counts _____ d. ☐ _____ years to Life on counts _____
- PLUS enhancement time shown above
7. ☒ Additional determinate term (see CR-290).
8. ☐ Defendant was sentenced pursuant to ☐ PC 667(b)-(i) or PC 1170.12 ☐ PC 667.6 ☐ PC 667.7 ☐ other (specify): _____



This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: Miguel Angel Rivera

CRM025095A

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$10,000. per PC 1202.4(b) forthwith per PC 2085.5; \$10,000. per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

\$ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$8935.34 ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution FundCase B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution FundCase D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund☐ *Victim name(s), if known, and amount breakdown in item 12, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase B: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase C: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offenseCase D: \$ per PC 1202.5 \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$80. per PC 1465.8.

e. Criminal Conviction Assessment: \$60. per GC 70373.

10. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify):11. REGISTRATION REQUIREMENT: ☐ per (specify code section):

12. Other orders (specify):

California Victim Compensation Board \$5,000.00 and Donna Maddick \$3935.34. Court reserves jurisdiction as to other victims.

13. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.Defendant's race/national origin: Hispanic

14. EXECUTION OF SENTENCING IMPOSED

- a. ☒ at initial sentencing hearing A
- b. ☐ at resentencing per decision on appeal
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment (PC 1170(d).)
- e. ☐ other (specify):

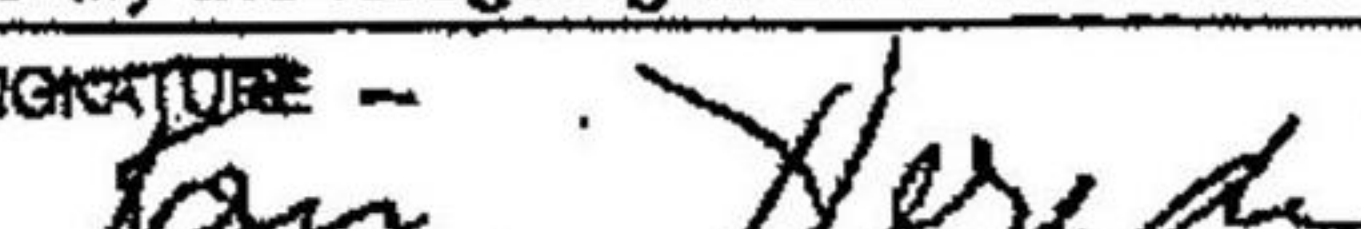
15. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	SEE	CR-	290 [] 2933 [] 2933.1 [] 4019
B			[] 2933 [] 2933.1 [] 4019
C			[] 2933 [] 2933.1 [] 4019
D			[] 2933 [] 2933.1 [] 4019
Date Sentence Pronounced		Time Served in State Institution	
08 27 2015		DMH CDC CRC	[] [] []

16. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE 	DATE September 2, 2015
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